

Anil v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 21 July 2023 · 2023:AHC:145915-DB · Writ-C No. 21409 of 2023 · **Writ disposed; authority to process the connection after a reply to the document letter.**

HEADNOTE

A second writ for mandamus to reinstall a meter and for Supply Code damages is not entertained where, after an earlier direction to decide a tenant's connection on an Annexure 4.2 indemnity bond under Clause 4.4, the Executive Engineer has called for documents and the applicant has not replied. On a reply within a week, the authority is to process the application in terms of that earlier direction.

FACTUAL SUMMARY

Anil, claiming tenancy of premises at Chaubeypur, Kandipur, Varanasi, sought reinstallation of meter no. 4608454 and damages under the U.P. Electricity Supply Code, 2005. In Writ-C No. 15881 of 2023 the Division Bench, on 10 May 2023, directed that if he furnished an Annexure 4.2 indemnity bond under Clause 4.4, the department would decide the connection after hearing the parties within four weeks. The Executive Engineer's letter of 9 June 2023 called for documents. Anil did not reply and filed this second writ. Respondents 4 and 5, the landlords, alleged he had misled the authority.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

Tenant connection under Clause 4.4 while a document call is unanswered

HOLDING

A fresh mandamus for reconnection and damages is not entertained where the Court has already directed that a tenant's connection be decided on an Annexure 4.2 indemnity bond under Clause 4.4, the Executive Engineer has called for documents, and the applicant has not replied. If the applicant responds to the letter dated 9 June 2023 within one week, the authority must process the application in the light of that earlier direction. ¶ 3-6

PRINCIPLE TAGS

direction-to-consider-connection-on-furnishing-4.4-or-annexure-4.2-documents After the 10 May 2023 direction to decide the tenant's connection on an Annexure 4.2 indemnity bond under Clause 4.4, the second writ was not entertained because the applicant had not answered the Executive Engineer's document letter. A reply within a week obliges the authority to process the application in terms of that direction, without the Court itself granting the connection. ¶ 3-6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER IS ENTITLED TO REINSTALLATION OF METER NO. 4608454 OR TO SANCTION OF THE CONNECTION

Left to the authority to process after he answers the letter dated 9 June 2023, in light of the earlier Clause 4.4 direction. ¶ 5-6

NOT DECIDED — CLAIM FOR DAMAGES UNDER THE U.P. ELECTRICITY SUPPLY CODE, 2005

Sought in the writ and not adjudicated. ¶ 2

NOT DECIDED — LANDLORDS' OBJECTION THAT THE PETITIONER MISLED THE AUTHORITY AND DID NOT APPROACH WITH CLEAN HANDS

Raised by respondents 4 and 5; the writ was disposed without a finding on suppression. ¶ 4-5

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.